

SENATE No. 734

The Commonwealth of Massachusetts

PRESENTED BY:

James B. Eldridge

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act ensuring access to specialty medications.

PETITION OF:

NAME:

James B. Eldridge

DISTRICT/ADDRESS:

Middlesex and Worcester

SENATE No. 734

By Mr. Eldridge, a petition (accompanied by bill, Senate, No. 734) of James B. Eldridge for legislation to ensure access to medications. Financial Services.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 630 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act ensuring access to specialty medications.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 112 of the General Laws is hereby amended by inserting after
2 section 39J the following section:-

3 Section 39K. (a) For the purposes of this section, a “specialty pharmacy” may include
4 any pharmacy in the commonwealth engaged in the dispensing of specialty medications as
5 defined in section 3B of chapter 176D; provided further, that “specialty pharmacy” shall not
6 include a mail service pharmacy.

7 The board shall establish a procedure to license specialty pharmacies, which prescribe,
8 ship, mail, sell or dispense specialty medications in the commonwealth. The board shall take
9 steps to ensure that all shipments of pharmaceutical drugs from in-state pharmacies to out-of-

state destinations are in compliance with the licensing procedures applicable to pharmacies in the commonwealth.

(b) (1) A specialty pharmacy shall designate a pharmacist in charge who shall register with the board and shall be responsible for the pharmacy's compliance with this chapter. Such pharmacist in charge shall be licensed and in good standing with the competent board of registration in pharmacy in the jurisdiction where the pharmacy is located.

(2) The designated pharmacist in charge shall disclose to the board the location, name and title of all principal managers and the name and applicable in-state board of registration license number of the designated pharmacist in charge, if applicable, and a letter from the board of registration of pharmacy certifying that the pharmacist in charge is in good standing with the applicable in-state board of registration. The designated pharmacist in charge shall submit a report containing this information and a copy of the certifying letter of good standing annually and within 30 days after any change of office, corporate office or manager of record.

(3) The designated pharmacist in charge shall certify to the board that the pharmacy maintains, at all times, a current unrestricted license, permit or registration to conduct the pharmacy in compliance with the laws and regulations of the jurisdiction in which the designated pharmacist in charge is licensed to practice. The pharmacy shall certify its compliance with reasonable informational requests made by the board and shall notify the board of any enforcement or disciplinary action taken against the pharmacy regardless of the state in which the enforcement action is taken.

(4) Annually, the designated pharmacist in charge shall certify to the board that the pharmacy maintains records of all drugs dispensed to patients in the commonwealth, and that

these records are readily available, upon the request of the board. Annually, the designated pharmacist in charge shall send to the board a list of drugs dispensed in the commonwealth.

(c) No pharmacy or pharmacist operating outside of the state shall prescribe, ship, mail, sell, transfer or dispense drug preparations in the commonwealth unless that pharmacy has been granted a specialty license pursuant to this section.

(d) The division of insurance may adopt any written policies or procedures or promulgate regulations that the division determines are necessary to implement this section.

SECTION 2. The fourth paragraph of section 3B of chapter 176D of the General Laws, as appearing in the 2022 Official Edition of the General Laws, is hereby amended by inserting after the second sentence the following sentences:- A carrier shall not prohibit the dispensing of specialty drugs as defined by this section that are included in its pharmaceutical drug benefits to insureds by any licensed pharmacy; provided, however, that the pharmacy is able to comply with the special handling, administration and monitoring requirements of the specialty drug. A carrier shall allow any network pharmacy to provide specialty drugs if the pharmacy agrees to the same reimbursement terms and conditions.